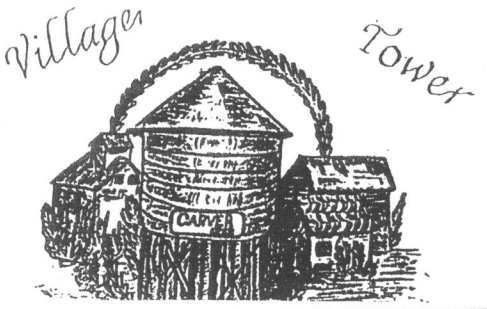
Volume XIX
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October / November 2001



Announcement

A historical pinnacle occurred in the City of Carver on October 1st 2001. The City of Carver Council held their first meeting in the Church-By-The-River. Mr Bob Williams rang the church bell before the meeting started. And you thought it wouldn't happen? Congratulations to everyone involved in the monumental task. Keep up the good work people!

Antenna Conditional Use Permit

The Planning Commission held a Public Hearing regarding the Conditional Use Permit request for an antenna on a transmission tower west of Elm Drive. There were bluff setback issues that needed to be resolved. Private utility easements are required for an antenna that would probably be located in areas where the city would also require easements. Sales of property would not affect compliance to agreements. The Planning Commission submitted an informal recommendation to approve issuance of the Conditional Use Permit to Excel Energy for installation of an antenna.

The council was told that Excel Energy requested installation of a "whip" antenna on top of an existing transmission tower on private property on top of the Fourth Street area. This antenna would enable Excel to read meters remotely. The council approved the Conditional Use Permit to install the antenna.

Carver Creek Environmental Trail Corridor

The Planning Commission informally recommended issuance of a Conditional Use Permit to Orrin Thompson Homes to correct any flood plain alterations in the Carver Creek Environmental Trail Corridor.

Carver North and South Proposal

The Planning Commission discussed the issue of the Carver North and South proposal. Carver South still has not resolved the access issue. The traffic survey has not been done either for Carver North.

Comprehensive Plan Amendment

The Planning Commission held a Public Hearing regarding the Comprehensive Plan Amendment. The city planner reviewed previous recommendations regarding Andrade Corporation/Carver Partners LLC/Rishavy annexation. Andrade Corporation requested designation of recently annexed property as low density residential development. The Planning Commission informally recommended approval of the Comprehensive Plan Amendment.

The recently annexed area is defined in the Comprehensive Plan as "Annexation Areas of Interest". The property is located north of the existing Carver Bluffs residential development, bordering County Road #40. The amendment would reclassify the area in the plan as "Future Land Use Map". This request is consistent with the Comprehensive Plan. Motion was made and carried amending the Comprehensive Plan designating the property for low density residential area.

Carver Bluffs

The Planning Commission reviewed the proposed final plat for Carver Bluffs Sixth Addition. The engineer reported that most street and utility work for this phase was completed with the Fifth Addition. Currently, sewer is in place, storm sewer and water main was being worked on. There was also an item concerning a sidewalk. The attorney stated that a development agreement was not necessary since all the major issues were handled with the Fifth Addition. The Sixth Addition could be decided with an amendment. The Planning Commission recommended approval of the final plat subject to conditions, requirements and/or recommendations by the city planner, engineer and/or attorney. The developer agreed to add the sidewalk in the area adjacent to Andrade Corporation property for potential future development.

Approval request for the final plant for Carver Bluffs Sixth Addition was presented to the council. The preliminary plat has been approved as part of the Carver Bluffs Central preliminary plat and the final plat of Carver Bluffs Fifth Addition. The final plat consists of thirty seven lots for single-family homes, two outlots and short section of Carver Bluffs Parkway. The final plat of Carver Bluffs Sixth Addition meets zoning requirements as approved and is consistent with the preliminary plat and zoning which was approved in July 2000. Motion was made and carried by roll call vote adopting the resolution approving the final plat for Carver Bluffs Sixth Addition.

Bluff Road Variances

The council was told that requests have been received for refund of escrow monies for the Bluff Road variances. Completion of approved bluff setback variances are almost done. Administrator requested the council's guidance for proceeding with this issue. Completion of the project would be required before escrowed monies would be returned was the decision of the council. It was also brought to their attention that during compliance verification that the lines are not marked with survey pins. Motion was made and carried that survey pins should be used to identify bluff line.

Speeding

A resident expressed concern regarding speeding on County Road #40. She said that the mornings were more of the problem time. The posted speed is 30 MPH. Further commented was added that the deputies were welcome to park in the resident's driveway if it would help to ensure safe driving habits.

2002 Police Contract

The council reviewed the contract for police services for 2002. Motion was made and carried by roll call vote to adopt resolution agreement with Carver County Sheriff's office. The council discussed receiving breakdown reports to evaluate patrolling times were effectively being utilized. Statement was made that these types of reports were not available. The council expressed necessity for input to ensure that the cities needs were being met properly. Suggestion was submitted to schedule a meeting with the sheriff's office to discuss these issues further. The council requested to receive monthly reports received presently.

The council was told that the sheriff's department is in the process of hiring more deputies. The issue of speeding was briefly discussed with the deputy. Request was made that the deputies schedule time to attend the second council meeting of the month. Council member commented that reviewing the report supplied that there has been a substantial increase of activities compared to last year. The Park and Recreation Board expressed concern about activities in the parks after curfew requesting patrol after 10 PM.

There have been discussions and tentative plans regarding changing ordinances to deal with driving on property behind the parks.

River View Estates Proposal

The Planning Commission reviewed the preliminary plat for RiverView Estates. There were four lots on 2.2 acres. One lot was the current residence, two lots would be accessed off of Elm Drive and the other two lots along the bluff would be accessed from a private driveway extending from Elm Drive. The adjacent property is Carver Creek property with future plans for a street replacing Elm Drive. Zoning and Subdivision Ordinances were reviewed. Variances had been requested and would be necessary due to access, public street frontage and bluff set backs. Mention was made of potential problems for future access and maintenance regarding private streets for homes. The attorney commented on similarities of past plans submitted which had been denied twice previously. The Planning Commission's informal recommendation was denial of the variance request.

The Planning Commission recommended that RiverView Estates developer attempt to comply with the city's ordinances and zoning requirements prior to submitting further proposals. The Planning Commission also recommended denial of the proposed preliminary plat for RiverView Estates.

The council reviewed information pertaining to River View Estates Subdivision proposal. The city planner explained that several zoning and subdivision ordinances changes were necessary in order to proceed with the subdivision. Further discussion was held regarding private and shared driveway. The driveway would only be twenty six feet wide. Emergency equipment access would probably not be viable. Sewer utility problems existed presently. Alternatives were examined. The attorney expressed reservations regarding the proposal since there had been previous denials. The bluff ordinance would also be possibly jeopardized. The attorney stated that due to the present code, the city's only option was denial of the subdivision. Statement was also made that it was also the opinion that the developer displayed total disregard for city ordinances. One major concern was the design of one home being built on the bluff.

The city attorney was of the opinion that three votes favored approval. He warned that ordinances should be changed first versus granting variances. Could the DNR be asked for their opinion regarding the bluff ordinance. Two council members stated that the site should be reviewed by the council. The attorney pointed out that these were two different issues. One being the setback from the bluff and second; definition of the bluff line. The attorney's concern was the impact on other subdivisions if changes were allowed for this one particular development. Motion was made and carried to table the subdivision issue.
Heated discussions continued. The attorney suggested that the engineer do some research on other bluff areas. The council was reminded that three separate ordinances required changes to accommodate this development. Also there was the cost factor inclusive of research to change these ordinances. Administrator questioned the council if they wanted to redefine the slope/bluffs or omit set backs entirely. Motions were made and carried directing the engineer to set survey lines for proposed subdivision and directed the staff to check into ordinance changes.

Fourth Street Improvement Project

The council was told by the city engineer of the necessity to schedule a hearing for the Fourth Street Improvement Project. The engineer recommended option #2. The assessment procedure was discussed, as well as bonding issues. Assessments for ten or twenty years were talked about. The assessment roll would need to be submitted to Carver County by November 30th. Motion was made and carried adopting Option #2.

Then the discussion concerning connection to municipal utilities and who would be required to be connected to the utilities. A list of homeowners inclusive to this issue was requested. Inclement weather could possibly cause postponement.

A summarization of the meeting with the DNR regarding Well #2 was presented to the council. The DNR remains firm in their decision that the city can not drill deeper into the aquifer. The Department of Health and DNR's consensus maintained that the city should drill to the shallower well and water treatment would be necessary. If these reports from the two agencies insist on shallow wells, then the plans and specifications need to be prepared by the engineer. The council discussed the issue of payment as well. Request was submitted for requirements and time schedules for this proposal by year end.

The council reviewed the Fourth Street Utility and Street Improvements assessment procedures. There was lengthy discussion held pertaining to connections, charges and length of time for placement on taxes. Discussion centered on notification of residents requiring connection to the municipal system. Motion was made and carried to forward letter presently informing citizens of the requirement to connect to municipal utilities and official notices would be forthcoming approximately May 1st 2002.

Electronic Message Board

The Carver Lions expressed interest in placing an electronic message board as to eliminate the use of plywood signs on the Village Hall. The council was asked for their help in locating a sign. The staff was directed to work with the Lions concerning the issue. Discussion was held about the sign location and the Village Hall facade. The Heritage Preservation Commission rejected the idea of the board on the Village Hall. Decision was made that a meeting should be scheduled specifically for this issue for the two organizations. One council member expressed interest in participating with this meeting.

Church-By-the-River

The council discussed permanent use of the Church-By-the-River building for meetings. The council was asked when meetings could be scheduled in the structure regularly. Consensus was that the building should be used as soon as practical.

Community Parks

Council member commented that there was money available in grants for a soccer field.

The Park and Recreation Board held a public meeting regarding Bluff Park installation of lights on the fields. Citizens had been present to discuss various issues regarding the park. There were discussions about converting both softball fields to baseball field and additional parking to accommodate baseball tournaments. Residents expressed opposition to night games and installation of lights. Question was raised concerning the need for two additional baseball fields. Modification of one the softball fields received support. Agreement was uniform regarding researching further the issue of parking.

Thereby, the Park and Recreation Board have dropped the issue of light installation at the Carver Bluffs Park. The board would like to further explore the possibility of acquiring property adjacent to the park so that the creation of additional parking in the future if necessary. The board would like to pursue modification of the northernmost softball field so that its use could be utilized for youth baseball and youth/adult softball. The board would like to see these fields playable for a portion of the 2002 baseball/softball season.

The board requested information concerning estimated costs for modification of a multi-use field, which could be utilized for soccer and other sports. The city's recommendation was requested. The mayor expressed agreement with the parking need for the bluff park. Suggestion was submitted that the board work with the staff on the parking issue. Recommendation was that the city aid in making the fields usable.

Motion was made and carried directing the staff to examine parking issues with bluff park and check on items that would be required to make the fields usable. The use of the fields should be the decision of the Park and Recreation Board. Comment was made that the available grant monies had too may stipulations attached to applications. Inquiry was made about approximate costs to construct a soccer field. Council member pointed out that a large sum of money was being paid for playground equipment that only small children can utilize. The field being discussed could be used by all ages. The council discussed could be used by all ages. The council discussed steps necessary to explore constructing a multi-use field. Motion was made and carried to direct the engineer to prepare preliminary grading plan for multi-use field. Suggestion was submitted to schedule a public meeting for input.

Building Inspector

The council discussed the city building inspector contract expiring December 31st , 2001. The Building Inspector, Tracy Salzl informed the coun-cil that she enjoyed the work in Carver and was of the impression that she had done a good job for the city. Motion was made and carried authorizing the Administrator to conduct preliminary discussions regarding renewal of professional services with the city.

Fire Department

The Fire Department had been kept busy in the city limits during September. The Fire Chief re-ported eleven calls during the month of Sep-tember. Burning leaves by residents in the city was questioned. The Fire Chief relayed that burning of leaves is not permitted. Fire wood can be burned as a recreational fire, but limited to three feet high and three feet wide. A recrea-tional fire was not required to be contained but the size of the fire was very important.

The Fire Chief reported that the Chief's Assoc-iation has encouraged departments to put mon-ey aside for new radios. Suggestion was sub-mitted to draft a letter requesting that the Coun-ty Commissioners and the cities aid in this pur-chase.

The council reviewed bids received for repair and replacement of the Fire Station roof. Boll-man Roofing was approved to conduct this work. Frey explained that a rubber roof would last a lifetime if proper care were taken. In approximately ten years the roof would require resurfacing with a special sealer. The council was aware that in ten years time there was the possibility that the building would no longer be in use.

Public Works

The council reviewed proposed prioritization project list for the fall of 2001 by the Public Works Department. The council approved this project list. Council member inquired about the omission of the Downtown Project on this task list. This project would not be started this fall. The engineer was scheduled to meet with the Heritage Preservation Commission for land-scape plans and their input. This project would be emphasized as an early spring project.

Bids received for repair work on the roof the city shop at the Lions Park was reviewed by the council. Recommendation was submitted that the roof be repaired with steel panels. Vandal-ism has occurred on the existing shingles of the roof. Motion was made and carried approv-ing acceptance of Tom Diethelm Construction's bid for the work.

The Lions Park Shelter also received damage due to vandalism and the weather. This roof would also be replaced with steel panels. Diethelm Construction was authorized to com-plete this work also.

Sixth Street

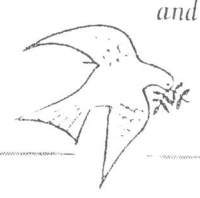
The council discussed storm water drainage improvements in the area of Sixth Street and Sunny Ridge. The council reviewed bids for corrective action. Further review would be necessary was the decision of the council. Exact plans were requested. One council mem-ber expressed his opinion that the individual who installed the street should be held liable for some of the costs of repairs. The council reviewed past history and problems associated with the storm water drainage in the area. The decision was made to table the issue at this time.

Carver Lions

Christmas decoration contest is still in the works. Ken Frey is the Chairman. Get ready. There should be some stiff competition. Ken says there will be a flyer put out. Watch for the "*Carver Quarterly*" for more details. There will be first, second and third place prize winners.

Change your thoughts
and you change your world.

Norman Vincent Peale



Fire Department Highlights

Community Calendar November

November 1st - Heritage Preservation Commission Meeting
Drill Night
November 2nd - No School
November 5th - Council Meeting
November 6th - Election Day
November 11th - Veteran's Day
November 12th - Park & Recreation Board Meeting
November 19th - Council Meeting
Drill Night
November 20th - YellowStone Raccoons 4-H Meeting
November 21st through November 26th
Thanksgiving Break/No School
November 22nd - Thanksgiving Day
Happy Birthday Tim!
November 23rd - Happy Anniversary Deb & Loren!
November 29th - Fire Department Meeting
Happy Birthday Ken!

Turkey Bingo Night

Black Sox Fundraiser - Their Turkey Bingo Night!!!!

When: November 9th
Where: Village Hall
Time: 7 PM - 11 PM

Food and Beverages Available

School Board Candidates

The School District #112 has school board elections on November 6th. The candidates include Michele Helgen who was appointed after the resignation of Kelly VonDeBur; current board members Steve Peterson and Carolyn Ness. Mr Peterson and Ms Ness are running for another four year term on the school board. Terms begin January 1st, 2002.

Candidates running are:

Michele Helgen, Chaska
Carolyn Ness, Chaska
Dr Leo Parvis, Chaska
Gayle Degler, Chanhassen
Cole Kelly, Chanhassen
Diane Koban, Victoria
Stephen Peterson, Chaska
Brenda Lewis, Chanhassen
Jennifer Neubarth, Victoria
Barry Strelow, Chanhassen

Be sure to get to the polls to vote on November 6th!!

Now is the time to voice your opinions! Tell the board what you want and how you want things in the school district handled. Silence can not be heard. Voices, votes, people can be heard. Not sure where to go to vote, call the court house or city halls or townships and ask.. Votes do count...voices are heard.

Lisa's Place

Monday through Saturday
10 AM - 1 AM

Sunday - Open at Noon
Grill Hours - Monday thru Saturday
10 AM - 12:30 AM

Carver Lions
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